



POLICE DEPARTMENT

August 17, 2023

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202201741 (Incident Date: February 21, 2022) regarding Police Officer Bryan Colucci-Molina, Tax No. 971376 (DADS No. 2023-28583)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202201741, pertaining to Police Officer Colucci-Molina. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Colucci-Molina would be detrimental to the Police Department's disciplinary process.

In this matter, Police Officer Colucci-Molina was one of approximately forty (40) police officers who responded to the scene of a police officer's distress call. Upon arriving at the location, he noticed a large, unruly crowd, and he then engaged in a foot pursuit of an individual, who was already being chased by other officers. Once that individual was caught, Officer Colucci-Molina assisted in arresting that individual. At this point, Officer Colucci-Molina observed several officers grabbing another nearby individual, who was holding a cell phone. It must be noted that this individual was recognized by CCRB investigators as "interfering with officers as they arrested [the first individual]," (CCRB Investigative Recommendation, page 7) thereby engaging in Obstructing Governmental Administration, and therefore subject to arrest. It was completely reasonable for Officer Colucci-Molina to believe that the officers trying to restrain the individual with the camera were also attempting to make a lawful arrest of that individual. Officer Colucci-Molina removed the individual's cell phone from his hand, as would be proper when an individual is being arrested. The fact that the individual was not actually arrested, *at that moment*, by the officers who had been restraining him, does not make Officer Colucci-Molina's actions improper. Rather, it shows that in an extremely loud, chaotic arrest situation, where a multitude of officers are trying to act in concert

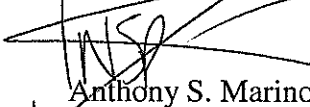
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with each other, there may be gaps in communication between the officers. The gap in communication, in this case, resulted in the individual's phone being removed, but the individual not being arrested until shortly afterward, whereupon his phone would have necessarily been removed anyway.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner intends, in the interest of justice, to retain jurisdiction over this matter and take no disciplinary action against Police Officer Colucci-Molina.

Sincerely,


Anthony S. Marino
Inspector
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
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ARVA RICE
INTERIM CHAIR

August 21, 2023

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202201741 involving PO Bryan Colucci-Molina (Tax #971376, DADS #2023-28583)

Commissioner Caban:

I am writing in response to the letter from INS Anthony Marino, dated August 17, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to not serve Charges and Specifications and take no disciplinary action against PO Colucci-Molina. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department (hereinafter referred to as “NYPD”), I am responding to INS Marino’s letter.

While the CCRB recognizes that the Police Commissioner is the final arbiter regarding disciplinary actions involving members of service, the CCRB is supposed to have an opportunity to respond in writing once informed of your intention to not follow a recommendation that a member of service receive Charges & Specifications. I understand more notice may have been impossible in this case, but I hope in the future that the CCRB will be afforded a true opportunity to be heard prior to a decision pursuant to Provision Two of the MOU.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

Cc: Stuart London, Esq.



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Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
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August 21, 2023

Re: CCRB Case No. 202201741 (Incident Date: February 21, 2022) regarding Police Officer
Bryan Colucci-Molina, Tax No. 971376 (DADS No. 2023-28583)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated August 21, 2023 concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Bryan Colucci-Molina, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Colucci-Molina, for the reasons expressed in my August 17, 2023 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Police Officer Colucci-Molina receive no disciplinary action in connection with this matter.

Sincerely,



NSP

Anthony S. Marino
Inspector
Commanding Officer
Police Commissioner's Office

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